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County: los-angeles

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Case Number: 25STCV25227 Hearing Date: August 7, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SARA

GUERRERO, et al.,

Plaintiffs,

vs.

GENERAL

MOTORS, LLC,

Defendant.

Case

No.:

25STCV25227

Hearing

Date:

August 7, 2026

ORDER

GRANTING DEFENDANT CGI FOODS' MOTION FOR ATTORNEY FEES AND COSTS

I. BACKGROUND

Plaintiffs

Sara Guerrero ("Guerrero") and Daniel Muniz ("Muniz") entered into a warranty contract with Defendant General Motors, LLC ("GM") regarding a 2024 Chevrolet Traverse ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM has failed to replace the vehicle or reimburse Plaintiffs. Plaintiffs sued GM for five causes of action, including breach of express warranty.

On

February 20, 2026, Guerrero filed notice of conditional settlement of the entire case.

On February

23, 2026, Guerrero filed the instant motion for attorney's fees and costs. GM filed an opposition. Guerrero filed a reply brief.

II. LEGAL STANDARD

Attorneys' fees are allowed

as costs when authorized by contract, statute, or law. (Code of Civil Procedure^[1]

§ 1033.5, subd. (a)(10)(B).) Civil Code section 1717 states that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. (Civ. Code, § 1717, subd.

(a).) The term "on a contract" is liberally construed to include any action that "involves" a contract. (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 894.) "To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action." (Brown Bark III, L.P. v. Haver (2013) 219 Cal.App.4th 809, 821.) "[F]ees are properly awarded under

section 1717 'to the extent that the action in fact is an action to enforce—or avoid enforcement of—the specific contract.'" (Turner v. Schultz (2009) 175 Cal.App.4th 974, 980.) The prevailing party on the contract is "the party who recovered greater relief in the action on the contract." (Civ. Code, § 1717, subd. (b)(1).)

The attorney bears the burden of proof as to "reasonableness" of any fee claim. (§ 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Ibid.)

A party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

IV. DISCUSSION

Guerrero moves for an award of attorney fees in the amount of \$13,020.00, costs of \$765.01, and anticipated motion fees totaling \$1,575.00.

A. Entitlement
to Attorney Fees

Guerrero seeks an award of attorney's fees pursuant to settlement reached at mediation. On January 19, 2026, parties executed the "Standardized SBA Release," in which GM agreed to pay reasonable attorney's fees, costs, and expenses, pursuant to Civil Code section 1794, subdivision (d). (Mot., Valero Decl. ¶ 6, Ex. 2.)

The Court notes dismissal has yet to be entered, but it appears parties intend to move forward with settlement. So long as all conditions of settlement are met, Guerrero is the 'prevailing' party under section 1032, subdivision (a)(4), and thus is entitled to attorney's fees and costs.

B. Reasonableness
of Fees

1. Reasonable Hourly Rate

In assessing the reasonableness of hourly billing rates, "the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 272 ["a reasonable hourly rate is the product of a multiplicity of factors . . . [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case"].) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the

best judge of the value of professional services rendered in [her] court.” (Ibid.)

Guerrero seeks to recover

attorneys’ fees for 24.8 hours at a rate of \$525.00 per hour for the work of Joshua Valero (“Valero”). (Mot., Valero Decl. ¶¶ 9, 16, Ex. 6.) Valero argues his rate is reasonable, as he has 15 years of legal experience, most of which has been for warranty related cases. (Id. at ¶ 12.) Valero also cited one 2025 case in which he was granted a \$500.00 per hour billing rate. (Id. at ¶ 16, Ex. 9.) Based upon Valero’s experience and previously granted billing rates, this rate appears facially reasonable to the Court.

GM argues the billed rate

is too high, in part citing to “Mikhaeilpoor, supra., 48 Cal.App.5th 240,” where the Court awarded only \$350.00 per hour in attorney fees. The Court first notes that nowhere within the opposition does GM actually provide the full name and citation for Mikhaeilpoor. The Court assumes GM intended to cite Mikhaeilpoor v. BMW of North America, LLC, 48 Cal.App.5th 240. In reviewing Mikhaeilpoor, the Court does not find it persuasive as to why Valero’s rate should be reduced. In Mikhaeilpoor, the court reduced the rates for all attorneys to \$350.00 due to substantial evidence, including counsel’s five years of experience, the number of attorneys who worked on the case, and the fact similarly or more experienced attorneys had previously been awarded billable rates of \$350.00. (Id. at 256.) As Valero had at least 10 years more experience than the Mikhaeilpoor attorneys and was the sole billing attorney, it is only reasonable his rates are higher than those granted in Mikhaeilpoor.

GM also asks the Court

instead to rely on the Real Rate Report and tax Valero’s billing rate to approximately \$300.00 per hour, based upon the assessment of this as a non-complex lemon law case. However, the Court has reviewed Valero’s hourly rates using the lodestar approach and does not find them to be excessive to the point of unreasonableness. Therefore, the Court sees no reason to lower the rates to those cited in the Real Rate Report.

2. Reasonable Hours

Incurred

“A trial court assessing

attorney fees begins with a touchstone or lodestar figure, based on the

'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

A prevailing party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (Lunada Biomedical v. Nunez (2014) 240 Cal.App.4th 459, 488.)

Guerrero seeks to recover attorney fees for a collective 24.8 hours litigating this matter. Valero did not submit verified billing invoices in support of the expended time, instead presenting an exhibit with time allocations for each task. (Mot., Valero Decl. ¶ 9, Ex. 6.) Therefore, Guerrero has not presented prima facie evidence that the services listed were necessarily incurred. The Court evaluates all listed expenses, and finds the following expenses should be subject to reduction:

Date

Description

Hrs/Rate

Reduction Amount

Reason

8/27/25

Research

and draft complaint, civil case cover sheet, civil case cover sheet addendum, summons

1.1,
\$525/hr

\$577.50

Excessive
time given experience and complexity.

8/28/25

Review
conformed complaint, prepare for service and send for service

0.3,
\$525/hr

\$157.50

Excessive
time given experience and complexity, paralegal or support staff task

The remaining tasks are
facially reasonable based upon the papers submitted in this action. Therefore,
the Court strikes \$735.00 in attorney fees from the requested rate of
\$13,020.00. The Court also notes the fees of \$1,575.00 attributable to
the time spent reviewing any opposition, replying to the opposition, and
attending any hearing on the motion are facially reasonable. The Court awards
attorney fees totaling \$13,860.00, including fees associated with this motion.

C. Costs

Allowable costs "shall be reasonably
necessary to the conduct of the litigation rather than merely convenient or
beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any
items not specifically mentioned by statute "may be allowed or denied in the
court's discretion." (Id., subd. (c)(4).) The Beverly-Song Act allows a successful
plaintiff to recover both "costs" and "expenses." (See Civ. Code, § 1794, subd.

(d.)

"If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].' [Citation.]" (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Guerrero requests a total of \$765.01 in costs and expenses, pursuant to the memorandum of costs. (Mot., Valero Decl. ¶ 9, Ex. 3.) GM does not contest Guerrero's right to the claimed costs. Therefore, the Court awards the sought costs.

V. CONCLUSION

Plaintiff Sara Guerrero's motion for attorney fees is GRANTED, in part. The Court awards attorney fees of \$13,860.00 and costs of \$765.01.

Guerrero is ordered to give notice.

DATED:

August 7, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this tentative ruling, the party must send an email

to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.